Document
EXHIBIT 10.35
The Goldman Sachs Group, Inc.
____ ______________ Award
This Award Agreement, together with The Goldman Sachs Amended and Restated Stock Incentive Plan (2021) (the “Plan”), governs your ___________________ of RSUs (your “Award”). You should read carefully this entire Award Agreement, which includes the Award Statement, any attached Appendix and the signature card.
Acceptance
1.
You Must Decide Whether to Accept this Award Agreement
. To be eligible to receive your Award, you must by the date specified (a) open and activate an Account and (b) agree to all the terms of your Award by executing the related signature card in accordance with its instructions. By executing the signature card, you confirm your agreement to
all
 of the terms of this Award Agreement, including the arbitration and choice of forum provisions in Paragraph [15][16].
Documents that Govern Your Award; Definitions
2.
The Plan
.
  Your Award is granted under the Plan, and the Plan’s terms apply to, and are a part of, this Award Agreement.
3.
Your Award Statement
.
  The Award Statement delivered to you contains some of your Award’s specific terms. For example, it contains the number of RSUs awarded to you and [any applicable][the] Delivery Date[s] and Transferability Date[s]. [The portion of your RSUs that are designated on the Award Statement as “____ Year-End Base RSUs” are referred to in this Award Agreement as “Base RSUs.” The portion of your RSUs that are designated on the Award Statement as “____ Year-End Additional Base RSUs” are referred to in this Award Agreement as “Additional Base RSUs.” The portion of your RSUs that are designated on the Award Statement as “____ Year-End Supplemental RSUs” are referred to in this Award Agreement as “Supplemental RSUs.” All references to RSUs in this Award Agreement include the Base RSUs, the Additional Base RSUs and the Supplemental RSUs.]
4.
Definitions
.
  Unless otherwise defined herein, including in the Definitions Appendix or any other Appendix, capitalized terms have the meanings provided in the Plan.
Vesting of Your RSUs
5.
Vesting
.
 All of your RSUs are Vested. When an RSU is Vested, it means
only
 that your continued active Employment is not required for delivery of that portion of RSU Shares.
Vesting does not mean you have a non-forfeitable right to the Vested portion of your Award. The terms of this Award Agreement (including conditions to delivery and any applicable Transfer Restrictions) continue to apply to Vested RSUs, and you can still forfeit Vested RSUs and any RSU Shares
.
Delivery of Your RSU Shares

6.
Delivery
.
Reasonably promptly (but no more than 30 Business Days) after [each][the] Delivery Date listed on your Award Statement, RSU Shares (less applicable withholding as described in Paragraph [12][13](a)) will be delivered (by book entry credit to your Account) [in respect of the amount of Outstanding RSUs listed next to that date]. The Committee or the SIP Committee may select multiple dates within the 30-Business-Day period following the Delivery Date to deliver RSU Shares in respect of all or a portion of the RSUs with the same Delivery Date listed on the Award Statement, and all such dates will be treated as a single Delivery Date for purposes of this Award. Until such delivery, you have only the rights of a general unsecured creditor, and no rights as a shareholder of GS Inc. Without limiting the Committee’s authority under Section 1.3.2(h) of the Plan, the Firm may accelerate any Delivery Date by up to 30 days.
Transfer Restrictions Following Delivery
7.
Transfer Restrictions and Shares at Risk
.

(a)
___ percent of the RSU Shares that are delivered on any date will be Shares at Risk subject to Transfer Restrictions[until the [applicable] Transferability Date listed on your Award Statement].
(b)
[Purported Transactions that Violate the Transfer Restrictions Are Void
.] Any purported sale, exchange, transfer, assignment, pledge, hypothecation, fractionalization, hedge or other disposition in violation of the Transfer Restrictions on Shares at Risk will be void.
(c)
[Removal of Transfer Restrictions
.] Within 30 Business Days after the [applicable] Transferability Date [listed on your Award Statement] (or any other date on which the Transfer Restrictions are to be removed), GS Inc. will remove the Transfer Restrictions. The Committee or the SIP Committee may select multiple dates within such 30-Business-Day period on which to remove Transfer Restrictions for all or a portion of the Shares at Risk with the same Transferability Date [listed on the Award Statement], and all such dates will be treated as a single Transferability Date for purposes of this Award.
Dividends
8.
[
Dividend Equivalent Rights and] Dividends
.
[Each RSU includes a Dividend Equivalent Right, which entitles you to receive an amount (less applicable withholding), at or after the time of distribution of any regular cash dividend paid by GS Inc. in respect of a share of Common Stock, equal to any regular cash dividend payment that would have been made in respect of an RSU Share underlying your Outstanding RSUs for any record date that occurs on or after the Date of Grant. In addition,] [y][Y]ou will be entitled to receive on a current basis any regular cash dividend paid in respect of your Shares at Risk. [The RSUs do
not
include Dividend Equivalent Rights.]
Forfeiture of Your Award
9.
How You May Forfeit Your Award
.
This Paragraph 9 sets forth the events that result in forfeiture of up to all of your RSUs and Shares at Risk and may require repayment to the Firm of up to all other amounts previously delivered or paid to

you under your Award in accordance with Paragraph 10. More than one event may apply, and in no case will the occurrence of one event limit the forfeiture and repayment obligations as a result of the occurrence of any other event. In addition, the Firm reserves the right to (a) suspend [payments under Dividend Equivalent Rights,] delivery of RSU Shares or release of Transfer Restrictions, (b) deliver any RSU Shares [or][,] dividends [or payments under Dividend Equivalent Rights] into an escrow account in accordance with Paragraph [12][13](f)(v) or (c) apply Transfer Restrictions to any RSU Shares in connection with any investigation of whether any of the events that result in forfeiture under the Plan or this Paragraph 9 have occurred. Paragraph 11 [(relating to certain circumstances under which restrictions on Association With a Covered Enterprise will not apply) and Paragraph 12] (relating to certain circumstances under which delivery and/or release of Transfer Restrictions may be accelerated) provide[s] for exceptions to one or more provisions of this Paragraph 9. [[Each of t][T]he [U.K. Material Risk Taker Appendix] [and the] [GSBE Material Risk Taker Appendix] supplements this Paragraph 9 and sets forth additional events that result in forfeiture of up to all of your RSUs and Shares at Risk and may require repayment to the Firm as described in Paragraph 10[and][,] the [U.K. Material Risk Taker Appendix] [and the] [GSBE Material Risk Taker Appendix].]

(a)

[RSUs Forfeited Upon Certain Events

. If any of the following occurs before the applicable Delivery Date, your rights to all of your Outstanding RSUs will terminate, and no RSU Shares will be delivered in respect of such RSUs:

(i)

GS Inc. Fails to Maintain the Minimum Tier 1 Capital Ratio

. GS Inc. fails to maintain the required “Minimum Tier 1 Capital Ratio” as defined under Federal Reserve Board Regulations applicable to GS Inc. for a period of 90 consecutive business days.

(ii)

GS Inc. Is Determined to Be in Default

. The Board of Governors of the Federal Reserve or the Federal Deposit Insurance Corporation (the “FDIC”) makes a written recommendation under Title II (Orderly Liquidation Authority) of the Dodd-Frank Wall Street Reform and Consumer Protection Act for the appointment of the FDIC as a receiver of GS Inc. based on a determination that GS Inc. is “in default” or “in danger of default.”]

(b)

RSUs [and Shares at Risk] Forfeited Upon Certain Events

. If any of the following occurs, [i] your rights to your Outstanding RSUs[as described below] will terminate, and no RSU Shares will be delivered in respect of such RSUs [and (ii) your rights to all of your Shares at Risk will terminate and your Shares at Risk will be cancelled, in each case, as may be further described below]:

(i)

You Associate With a Covered Enterprise

.

(A)

If you Associate With a Covered Enterprise before the earlier of _____________ or a Qualifying Termination After a Change in Control, your rights to ____% of your Outstanding RSUs will terminate, and no RSU Shares will be delivered in respect of such RSUs.

(ii)

You Solicit Clients or Employees, Interfere with Client or Employee Relationships or Participate in the Hiring of Employees

. Before ____________ and except as prohibited by applicable law, either:

(A)

you, in any manner, directly or indirectly, (1) Solicit any Client to transact business with a Covered

Enterprise or to reduce or refrain from doing any business with the Firm, (2) interfere with or damage (or attempt to interfere with or damage) any relationship between the Firm and any Client, (3) Solicit any person who is an employee of the Firm to resign from the Firm, (4) Solicit any Selected Firm Personnel to apply for or accept employment (or other association) with any person or entity other than the Firm or (5) participate in the hiring of any Selected Firm Personnel by any person or entity other than the Firm (including, without limitation, participating in the identification of individuals for potential hire, and participating in any hiring decision), whether as an employee or consultant or otherwise, or

(B)

Selected Firm Personnel are Solicited, hired or accepted into partnership, membership or similar status by any entity where you have, or will have, direct or indirect managerial responsibility for such Selected Firm Personnel, unless the Committee determines that you were not involved in such Solicitation, hiring or acceptance.

(iii)

[

GS Inc. Fails to Maintain the Minimum Tier 1 Capital Ratio

. Before the applicable Delivery Date, GS Inc. fails to maintain the required “Minimum Tier 1 Capital Ratio” as defined under Federal Reserve Board Regulations applicable to GS Inc. for a period of 90 consecutive business days.]

(iv)

[

GS Inc. Is Determined to Be in Default

. Before the applicable Delivery Date, the Board of Governors of the Federal Reserve or the Federal Deposit Insurance Corporation (the “FDIC”) makes a written recommendation under Title II (Orderly Liquidation Authority) of the Dodd-Frank Wall Street Reform and Consumer Protection Act for the appointment of the FDIC as a receiver of GS Inc. based on a determination that GS Inc. is “in default” or “in danger of default.”]

(v)

[

Accounting Restatement Required Under Sarbanes-Oxley

. GS Inc. is required to prepare an accounting restatement due to GS Inc.’s material noncompliance, as a result of misconduct, with any financial reporting requirement under the securities laws as described in Section 304(a) of Sarbanes-Oxley;

provided

,

however

, that your rights with respect to the RSUs will only be terminated to the same extent that would be required under Section 304(a) of Sarbanes-Oxley had you been a “chief executive officer” or “chief financial officer” of GS Inc. (regardless of whether you actually hold such position at the relevant time).]

(c)

[RSUs and Shares at Risk Forfeited upon Certain Events

. If any of the following occurs (i) your rights to all of your Outstanding RSUs will terminate, and no RSU Shares will be delivered in respect of such RSUs and (ii) your rights to all of your Shares at Risk will terminate and your Shares at Risk will be cancelled, in each case, as may be further described below:]

(i)

You Failed to Consider Risk

. You Failed to Consider Risk during __________.

(ii)

Your Conduct Constitutes Cause

. Any event that constitutes Cause [(including, for the avoidance of doubt, “Serious Misconduct” as defined in the U.K. Material Risk Taker Appendix)] has occurred before

___________.
(iii)
You Do Not Meet Your Obligations to the Firm
. The Committee determines that, before ____________, you failed to meet, in any respect, any obligation under any agreement with the Firm, or any agreement entered into in connection with your Employment or this Award, including the Firm’s notice period requirement applicable to you, any offer letter, employment agreement or any shareholders’ agreement relating to the Firm. Your failure to pay or reimburse the Firm, on demand, for any amount you owe to the Firm will constitute (A) failure to meet an obligation you have under an agreement, regardless of whether such obligation arises under a written agreement, and/or (B) a material violation of Firm policy constituting Cause.
(iv)
You Do Not Provide Timely Certifications or Comply with Your Certifications
. You fail to certify to GS Inc. that you have complied with all of the terms of the Plan and this Award Agreement, or the Committee determines that you have failed to comply with a term of the Plan or this Award Agreement to which you have certified compliance.
(v)
You Do Not Follow Dispute Resolution/Arbitration Procedures
. You attempt to have any dispute under the Plan or this Award Agreement resolved in any manner that is not provided for by Paragraph [15][16] or Section 3.17 of the Plan, or you attempt to arbitrate a dispute without first having exhausted your internal administrative remedies in accordance with Paragraph [12][13](f)(viii).
(vi)
You Bring an Action that Results in a Determination that Any Award Agreement Term Is Invalid
. As a result of any action brought by you, it is determined that any term of this Award Agreement is invalid.
(vii)
You Receive Compensation in Respect of Your Award from Another Employer
. Your Employment terminates for any reason or you otherwise are no longer actively Employed with the Firm and another entity grants you cash, equity or other property (whether vested or unvested) to replace, substitute for or otherwise in respect of any Outstanding RSUs or Shares at Risk;
provided
,
however
, that your rights will only be terminated in respect of the RSUs and Shares at Risk that are replaced, substituted for or otherwise considered by such other entity in making its grant.
(viii)
[
Accounting Restatement Required Under Sarbanes-Oxley
. GS Inc. is required to prepare an accounting restatement due to GS Inc.’s material noncompliance, as a result of misconduct, with any financial reporting requirement under the securities laws as described in Section 304(a) of Sarbanes-Oxley;
provided
,
however
, that your rights will only be terminated in respect of the RSUs and Shares at Risk to the same extent that would be required under Section 304(a) of Sarbanes-Oxley had you been a “chief executive officer” or “chief financial officer” of GS Inc. (regardless of whether you actually hold such position at the relevant time).]
(ix)
[GS Inc. Fails to Maintain the Minimum Tier 1 Capital Ratio
. Prior to the Transferability Date, GS Inc. fails to maintain the required “Minimum Tier 1 Capital Ratio” as defined under Federal Reserve Board Regulations applicable to GS Inc. for a period of 90 consecutive business days.]

(x)

[GS Inc. Is Determined to Be in Default

. Prior to the Transferability Date, the Board of Governors of the Federal Reserve or the Federal Deposit Insurance Corporation (the “FDIC”) makes a written recommendation under Title II (Orderly Liquidation Authority) of the Dodd-Frank Wall Street Reform and Consumer Protection Act for the appointment of the FDIC as a receiver of GS Inc. based on a determination that GS Inc. is “in default” or “in danger of default.”]

Repayment of Your Award

10.

When You May Be Required to Repay Your Award

.

(a)

[Repayment, Generally]

. If the Committee determines that any term of this Award was not satisfied, you will be required, immediately upon demand therefor, to repay to the Firm the following:

(i)

Any RSU Shares (which, for the avoidance of doubt, includes any Shares at Risk) for which the terms (including the terms for delivery) of the related RSUs were not satisfied, in accordance with Section 2.6.3 of the Plan.

(ii)

Any Shares at Risk for which the terms (including the terms for the release of Transfer Restrictions) were not satisfied, in accordance with Section 2.5.3 of the Plan.

(iii)

Any RSU Shares that were delivered (but not subject to Transfer Restrictions) at the same time any Shares at Risk that are cancelled or required to be repaid were delivered.

(iv)

[Any payments under Dividend Equivalent Rights for which the terms were not satisfied (including any such payments made in respect of RSUs that are forfeited or RSU Shares that are cancelled or required to be repaid), in accordance with Section 2.8.3 of the Plan.]

(v)

Any dividends paid in respect of any RSU Shares that are cancelled or required to be repaid.

(vi)

Any amount applied to satisfy tax withholding or other obligations with respect to any RSUs, RSU Shares[and][,] dividend payments [and payments under Dividend Equivalent Rights] that are forfeited or required to be repaid.

(b)

[

Repayment Upon Accounting Restatement Required Under Sarbanes-Oxley

. If an event described in Paragraph 9(b)(viii) (relating to a requirement under Sarbanes-Oxley that GS Inc. prepare an accounting restatement) occurs, any RSU Shares, cash or other property delivered, paid or withheld in respect of this Award will be subject to repayment as described in Paragraph 10(a) to the same extent that would be required under Section 304(a) of Sarbanes-Oxley had you been a “chief executive officer” or “chief financial officer” of GS Inc. (regardless of whether you actually hold such position at the relevant time).]

[[Exceptions to Association with a Covered Enterprise,][Accelerated] Delivery Date[s] and/or Transferability Date[s]

11.

Restrictions on Association With a Covered Enterprise Cease to Apply After an Involuntary or Mutual Agreement Termination (but the Original Delivery Date and Transferability Date Continue to Apply)

.

Paragraph 9(a)(i) (relating to forfeiture if you Associate With a Covered Enterprise) will not apply if (a) your Employment terminates and the Firm characterizes your Employment termination as “involuntary” or by “mutual agreement” (and, in each case, you have not engaged in conduct constituting Cause) and (b) you execute a general waiver and release of claims and an agreement to pay any associated tax liability, in each case, in the form the Firm prescribes. No Employment termination that you initiate, including any purported “constructive termination,” a

“termination for good reason” or similar concepts, can be “involuntary” or by “mutual agreement.” All other terms of this Award Agreement, including the other forfeiture and repayment events in Paragraphs 9 and 10, continue to apply.]

12.

Accelerated Delivery and/or Release of Transfer Restrictions in the Event of a Qualifying Termination After a Change in Control, Conflicted Employment or Death

.

In the event of your Qualifying Termination After a Change in Control, Conflicted Employment or death, each as described below, your Outstanding RSUs and Shares at Risk will be treated as described in this Paragraph [11][12], and, except as set forth in Paragraph [11][12](a), all other terms of this Award Agreement, including the other forfeiture and repayment events in Paragraphs 9 and 10, continue to apply.

(a)

You Have a Qualifying Termination After a Change in Control

. If your Employment terminates when you meet the requirements of a Qualifying Termination After a Change in Control, the RSU Shares underlying your Outstanding RSUs will be delivered, and any Transfer Restrictions will cease to apply. In addition, the forfeiture events in Paragraph 9 will not apply to your Award.

(b)

You Are Determined to Have Accepted Conflicted Employment

.

(i)

Generally

. Notwithstanding anything to the contrary in the Plan or otherwise, for purposes of this Award Agreement, “Conflicted Employment” means your employment at any U.S. Federal, state or local government, any non-U.S. government, any supranational or international organization, any self-regulatory organization, or any agency or instrumentality of any such government or organization, or any other employer (other than an “Accounting Firm” within the meaning of SEC Rule 2-01(f)(2) of Regulation S-X or any successor thereto) determined by the Committee, if, as a result of such employment, your continued holding of any Outstanding RSUs and Shares at Risk would result in an actual or perceived conflict of interest. Unless prohibited by applicable law or regulation, if your Employment terminates solely because you resign to accept Conflicted Employment or if, following your termination of Employment, you notify the Firm that you are accepting Conflicted Employment, RSU Shares will be delivered in respect of your Outstanding RSUs (including in the form of cash as described in Paragraph [12][13](b)) and any Transfer Restrictions will cease to apply as soon as practicable after the Committee has received satisfactory documentation relating to your Conflicted Employment.

(ii)

You May Have to Take Other Steps to Address Conflicts of Interest

. The Committee retains the authority to exercise its rights under the Award Agreement or the Plan (including Section 1.3.2 of the Plan) to take or require you to take other steps it determines in its sole discretion to be necessary or appropriate to cure an actual or perceived conflict of interest (which may include a determination that the accelerated delivery and/or release of Transfer Restrictions described in Paragraph [11][12](b)(i) will not apply because such actions are not necessary or appropriate to cure an actual or perceived conflict of interest).

(c)

Death
. If you die, the RSU Shares underlying your Outstanding RSUs will be delivered to your Account and any Transfer Restrictions will cease to apply as soon as practicable after the date of death and after such documentation as may be requested by the Committee is provided to the Committee.
Other Terms, Conditions and Agreements
13.
Additional Terms, Conditions and Agreements
.
(a)
You Must Satisfy Applicable Tax Withholding Requirements
. Delivery of RSU Shares is conditioned on your satisfaction of any applicable withholding taxes in accordance with Section 3.2 of the Plan, which includes the Firm deducting or withholding amounts from any payment or distribution to you. In addition, to the extent permitted by applicable law, the Firm, in its sole discretion, may require you to provide amounts equal to all or a portion of any Federal, state, local, foreign or other tax obligations imposed on you or the Firm in connection with the

grant[, Vesting] or delivery of this Award by requiring you to choose between remitting the amount (i) in cash (or through payroll deduction or otherwise) or (ii) in the form of proceeds from the Firm’s executing a sale of RSU Shares delivered to you under this Award. In no event, however, does this Paragraph [12][13](a) give you any discretion to determine or affect the timing of the delivery of RSU Shares or the timing of payment of tax obligations.
(b)
Firm May Deliver Cash or Other Property Instead of RSU Shares
. In accordance with Section 1.3.2(i) of the Plan, in the sole discretion of the Committee, in lieu of all or any portion of the RSU Shares, the Firm may deliver cash, other securities, other awards under the Plan or other property, and all references in this Award Agreement to deliveries of RSU Shares will include such deliveries of cash, other securities, other awards under the Plan or other property.
(c)
Amounts May Be Rounded to Avoid Fractional Shares
. RSU Shares that become deliverable on a Delivery Date and RSU Shares subject to Transfer Restrictions may, in each case, be rounded to avoid fractional Shares.
(d)
You May Be Required to Become a Party to the Shareholders’ Agreement
. Your rights to your RSUs are conditioned on your becoming a party to any shareholders’ agreement to which other similarly situated employees (
e.g
., employees with a similar title or position) of the Firm are required to be a party.
(e)
Firm May Affix Legends and Place Stop Orders on Restricted RSU Shares
. GS Inc. may affix to Certificates representing RSU Shares any legend that the Committee determines to be necessary or advisable (including to reflect any restrictions to which you may be subject under a separate agreement). GS Inc. may advise the transfer agent to place a stop order against any legended RSU Shares.
(f)
You Agree to Certain Consents, Terms and Conditions
. By accepting this Award you understand and agree that:
(i)
You Agree to Certain Consents as a Condition to the Award
. You have expressly consented to all of the items listed in Section 3.3.3(d) of the Plan, including the Firm’s supplying to any third-party recordkeeper of the Plan or other person such personal information of yours as the Committee deems advisable to administer the Plan, and you agree to provide any additional consents that the Committee determines to be necessary or advisable;
(ii)

You Are Subject to the Firm’s Policies, Rules and Procedures

. You are subject to the Firm’s policies in effect from time to time concerning trading in RSU Shares and hedging or pledging RSU Shares and equity-based compensation or other awards (including, without limitation, the “Firmwide Policy with Respect to Personal Transactions Involving GS Securities and GS Equity Awards” or any successor policies), and confidential or proprietary information, and you will effect sales of RSU Shares in accordance with such rules and procedures as may be adopted from time to time (which may include, without limitation, restrictions relating to the timing of sale requests, the manner in which sales are executed, pricing method, consolidation or aggregation of orders and volume limits determined by the Firm);

(iii)

You Are Responsible for Costs Associated with Your Award

. You will be responsible for all brokerage costs and other fees or expenses associated with your RSUs, including those related to the sale of RSU Shares;

(iv)

You Will Be Deemed to Represent Your Compliance with All the Terms of Your Award if You Accept Delivery of, or Sell, RSU Shares

. You will be deemed to have represented and certified that you have complied with all of the terms of the Plan and this Award Agreement when RSU Shares are delivered to you[, you receive payment in respect of Dividend Equivalent Rights] and you request the sale of RSU Shares following the release of Transfer Restrictions;

(v)

Firm May Deliver Your Award into an Escrow Account

. The Firm may establish and maintain an escrow account on such terms (which may include your executing any documents related to, and your paying for any costs associated with, such account) as it may deem necessary or appropriate, and the delivery of RSU Shares (including Shares at Risk) or the payment of cash (including dividends [and payments under Dividend Equivalent Rights]) or other property may initially be made into and held in that escrow account until such time as the Committee has received such documentation as it may have requested or until the Committee has determined that any other conditions or restrictions on delivery of RSU Shares, cash or other property required by this Award Agreement have been satisfied;

(vi)

You May Be Required to Certify Compliance with Award Terms; You Are Responsible for Providing the Firm with Updated Address and Contact Information After Your Departure from the Firm

. If your Employment terminates while you continue to hold RSUs or Shares at Risk, from time to time, you may be required to provide certifications of your compliance with all of the terms of the Plan and this Award Agreement as described in Paragraph 9(b)(iv). You understand and agree that (A) your address on file with the Firm at the time any certification is required will be deemed to be your current address, (B) it is your responsibility to inform the Firm of any changes to your address to ensure timely receipt of the certification materials, (C) you are responsible for contacting the Firm to obtain such certification materials if not received and (D) your failure to return properly completed certification materials by the specified deadline (w